

Can I share this?

Linking, framing and embedding

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Who are they?



What is a link?

*The intention in the design of the web was that normal links should **simply be references**, with no implied meaning.*

*There is **no reason to have to ask** before making a link to another site*

*We cannot regard anyone as having the "right not to be referred to" without completely pulling the rug out from under **free speech**.*

Tim Berners-Lee

What is a link?

It is of course true that your document is made more valuable by links to high quality relevant other documents. [...] This doesn't mean I owe those people something.

Tim Berners-Lee

Do those statements hold true?

Svensson

- *Göteborg-Posten* was publishing its articles online
- Retriever Sverige provided **a list of clickable links** to articles published by other websites, including *Göteborg-Posten*
- *Göteborg-Posten* journalists sought compensation for making their works available
- Swedish court stayed the proceedings and referred a set of questions to the CJEU

Does provision of a clickable link constitute communication to the public?

***copyright holder = a bundle holder**

Reproduction right (right to copy)

Distribution right (right to issue copies to the public)

Rental and lending right

Right of communication to the public (broadcasting + making available)

Right to adaptation (right to create derivative works)

All exclusive rights are prohibitive

Right of communication to the public

*Member States shall provide authors with the exclusive right to authorise or prohibit **any communication to the public** of their works, by wire or wireless means, **including the making available to the public** of their works in such a way that members of the public may access them from a place and at a time individually chosen by them.*

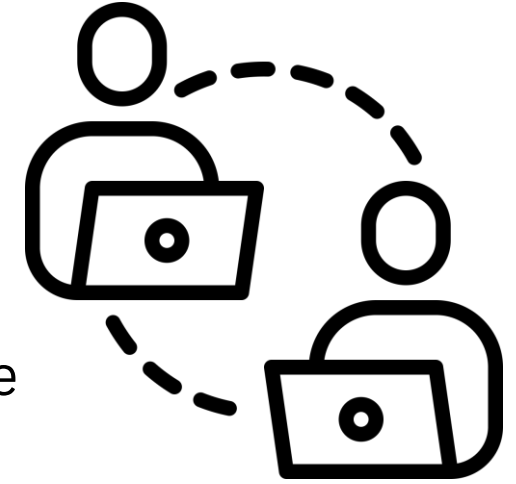
Information Society Directive art. 3(1)

Source: WIPO Copyright Treaty (WCT)(1996)

Interpretation: Court of Justice of the European Union (CJEU)

(work +) act of communication + public

Act of communication



A link provides users **direct access** to works on another website

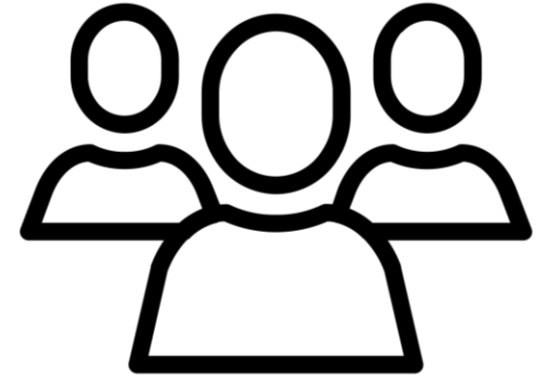
A work is made available in such a way that **users can access it**

Whether a user clicks on a link is irrelevant: **transmission is not necessary**

Need to ensure high level of protection

→ Act of communication found

Public



Indeterminate and fairly large number of persons

Cumulative effect

No "private" communication = family and friends

→ Public found

Provision of a link constitutes communication to the public

Were the links provided by Retriever Sverige infringing?

No, they weren't.

Why?

Communication to the public

Act of communication + public, are not the only factors to consider

CJEU forged a number of **additional conditions**

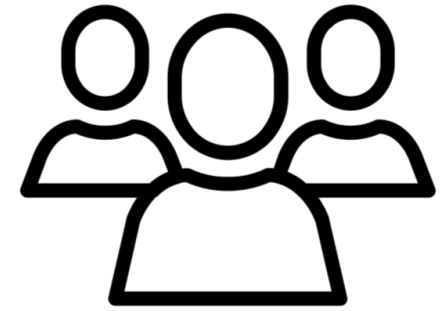
Those conditions are **complementary** and **interdependent**

They require **individual assessment**

Remember: communication to the public is **an autonomous concept** of the EU law.

it exists **alongside other exclusive rights**, such as right to reproduction

New public



Public which was not originally **taken under consideration** by the rightsholder.

Svensson

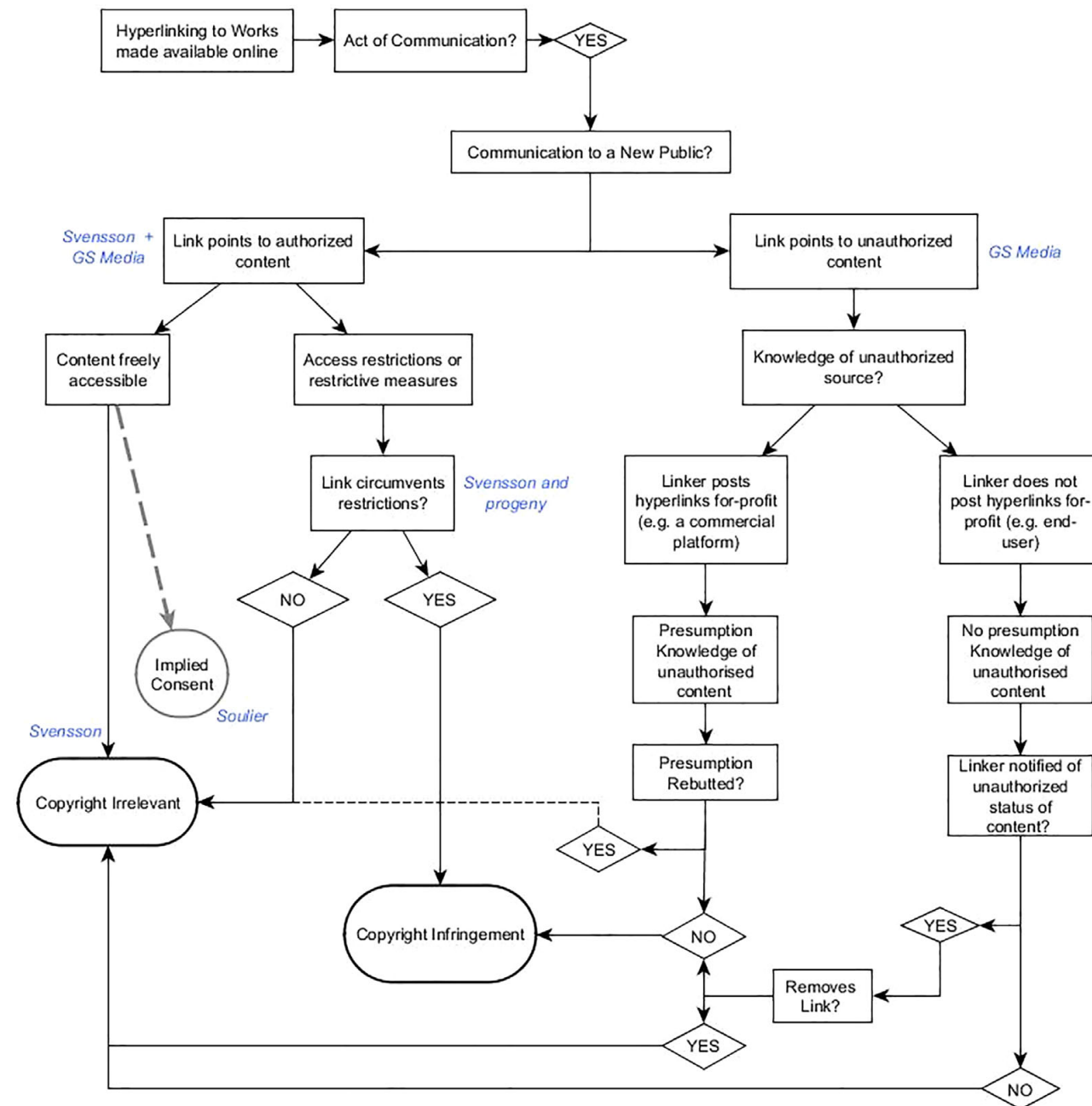
Articles posted on *Göteborg-Posten* website were available without any restrictive measures

Public = all internet users

→ **No new public, no infringement**

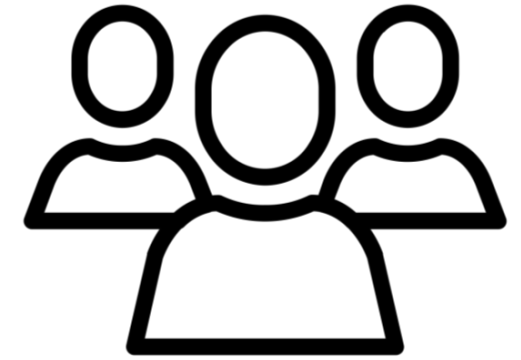
Hypothetical: restrictions are in place
a link circumvents the restrictions = infringement

The communication to the public CJEU saga begins...



Hyperlinking and new public flowchart
 João Pedro Quintais
Untangling the hyperlinking web: In search of the online right of communication to the public
 J World Intellect Prop. 2018;21:385–420
<https://doi.org/10.1111/jwip.12107>

New public



Restrictive measures?

*in a situation in which an author gives [...] authorisation to the publication of his or her articles on the website [...], without making use of **technological measures** restricting access to that work from other websites, that author may be regarded, in essence, as having authorised the communication of that work to all internet users*

Bild-Kunst, C-392/19

All internet users?

*the public taken into account by the copyright holder when he consented to the communication of his work on the website on which it was originally published is composed **solely of users of that site** and **not of** users of the website on which the work was subsequently published without the consent of the rightholder, or **other internet users***

Renckhoff, C-161/17

What about geo-blocking?

→ **Anne Frank Fonds (C-788/24)** pending

Anne Frank diaries remain (partially) protected by copyright in the NL, but not in BE
a scholarly edition of the diaries was published on a BE website, access is
geo-blocked to the NL users

Anne Frank Fonds: access of NL users is not adequately restricted due to use of VPNs
= right of communication to the public is infringed

- 1) Is it necessary for an online publication to be addressed to the users in a given country for there to be a communication to the public in that country?
- 2) Is there a communication to the public in a country where access to the website is geo-blocked?

→ AG Rantos Opinion delivered 15 January 2026

Technical means

Use of **different** technical means than the one previously used.

E.g. a program communicated by satellite broadcasting is later made available on the internet

TV Catchup, C-607/11

Not applicable in the case of linking

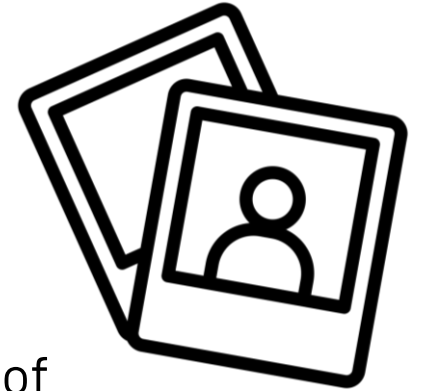
Why?

Internet considered as single technical means



What if a work was originally published **without** the consent of the rightsholder?

GS Media



- Sanoma, a publisher of Dutch *Playboy*, magazine has commissioned photos of Ms Decker
- Photos of Ms Decker were made available, before publication by *Playboy*, on Filefactory website
- GS Media operates a GeenStijl website
- GeenStijl has published a set of articles linking to the photos of Ms Decker
- Sanoma has requested GS Media to remove links to infringing photos. GS Media did not oblige

Is linking to works freely available on another website without the consent of the rightsholder infringing?

Unauthorised content



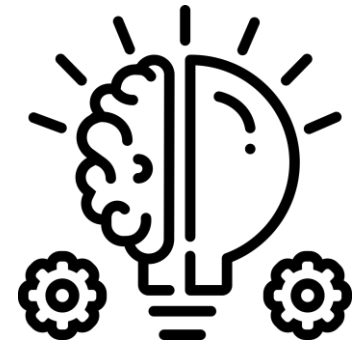
New public criterion **does not apply** when the initial communication was **not authorised** by the rightsholder

Initial communication without consent was infringing

Subsequent communication is infringing when:

*a person [posting a link] **knew or ought to have known** that the hyperlink he posted provides access to a work illegally placed on the internet, for example owing to the fact that he was notified thereof by the copyright holders*

Unauthorised content



Person posting links **not for profit**

does not, as a general rule, **intervene in full knowledge of the consequences of his conduct** in order to give customers access to a work illegally posted on the internet.

→ **presumption of the lack of knowledge**

Links provided **for profit**

when the posting of hyperlinks is carried out for profit, it can be expected that the person who posted such a link **carries out the necessary checks** to ensure that the work concerned is not illegally published on the website to which those hyperlinks lead, so that **it must be presumed that that posting has occurred with the full knowledge of the protected nature of that work** and the possible lack of consent to publication on the internet by the copyright holder.

→ **presumption of knowledge (rebuttable)**

Were links published by GeenStijl infringing?

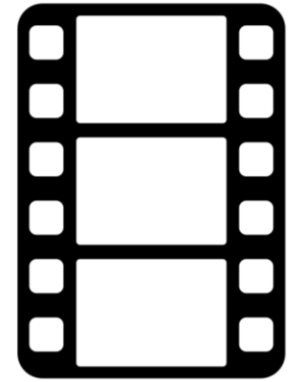
Yes, they were.

Why?

Is that all?

No, it isn't.

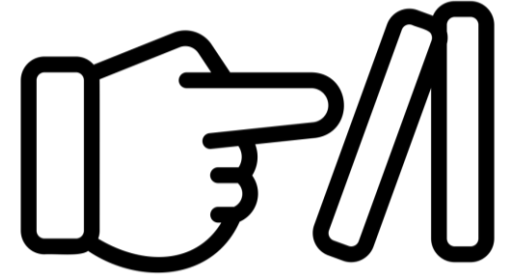
Filmspeler



- Mr Wullems sells a multimedia player named "filmspeler"
- The filmspeler includes add-ons which contain links to streaming websites offering unauthorised works
- When advertising filmspeler Mr Wullems emphasised that it provides access to unauthorised works
- Stichting Brein demanded that Mr Wullems stops selling filmspeler and offering users illegal access to copyrighted works

Is the sale of devices including links to infringing works freely available on the internet infringing?

Essential role of a linker

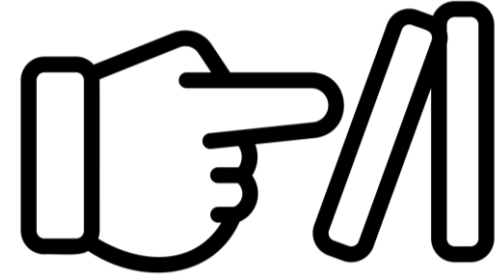


"mere" provision of physical facilities for enabling or making communication does not constitute communication to the public

But –

intervention enabling a direct link to be established between websites broadcasting counterfeit works and purchasers of the multimedia player, without which the purchasers would find it difficult to benefit from those protected works

Essential role of a linker



*The user makes an act of communication when he intervenes, **in full knowledge of the consequences of his action**, to give access to a protected work to his customers and does so, in particular, where, in the absence of that intervention, his customers **would not, in principle, be able to enjoy** the broadcast work*

- Intervention is essential, but not (quite) indispensable
- Intervention is deliberate and in full knowledge
- An element of an act of communication
- Paving the way for the secondary liability

Pirate Bay



- Ziggo and XS4ALL are internet service providers
- The Pirate Bay (TPB) is an online sharing platform which indexes BitTorrent files uploaded by its users (seeders) allowing other users (leechers) to find and download them
- Majority of the TPB BitTorrent files contain copyright-infringing works
- Users uploading the BitTorrent files infringe copyright

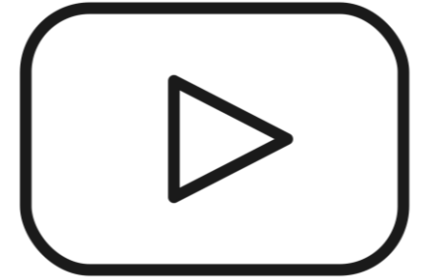
Is making available and managing of a TPB-like service communication to the public?

*it is true [...] that the works thus made available to the users of the online sharing platform TPB have been placed online on that platform not by the platform operators but by its users. However, the fact remains that those operators, by making available and managing an online sharing platform such as that at issue in the main proceedings, **intervene, with full knowledge of the consequences of their conduct, to provide access to protected works**, by indexing on that platform torrent files which allow users of the platform to locate those works and to share them within the context of a peer-to-peer network. [...]*

*the operators of the online sharing platform TPB, by making that platform available and managing it, provide their users with access to the works concerned. They can therefore be regarded as **playing an essential role in making the works in question available**.*

→ Secondary-like liability: liability for users' actions

YouTube/Cyando



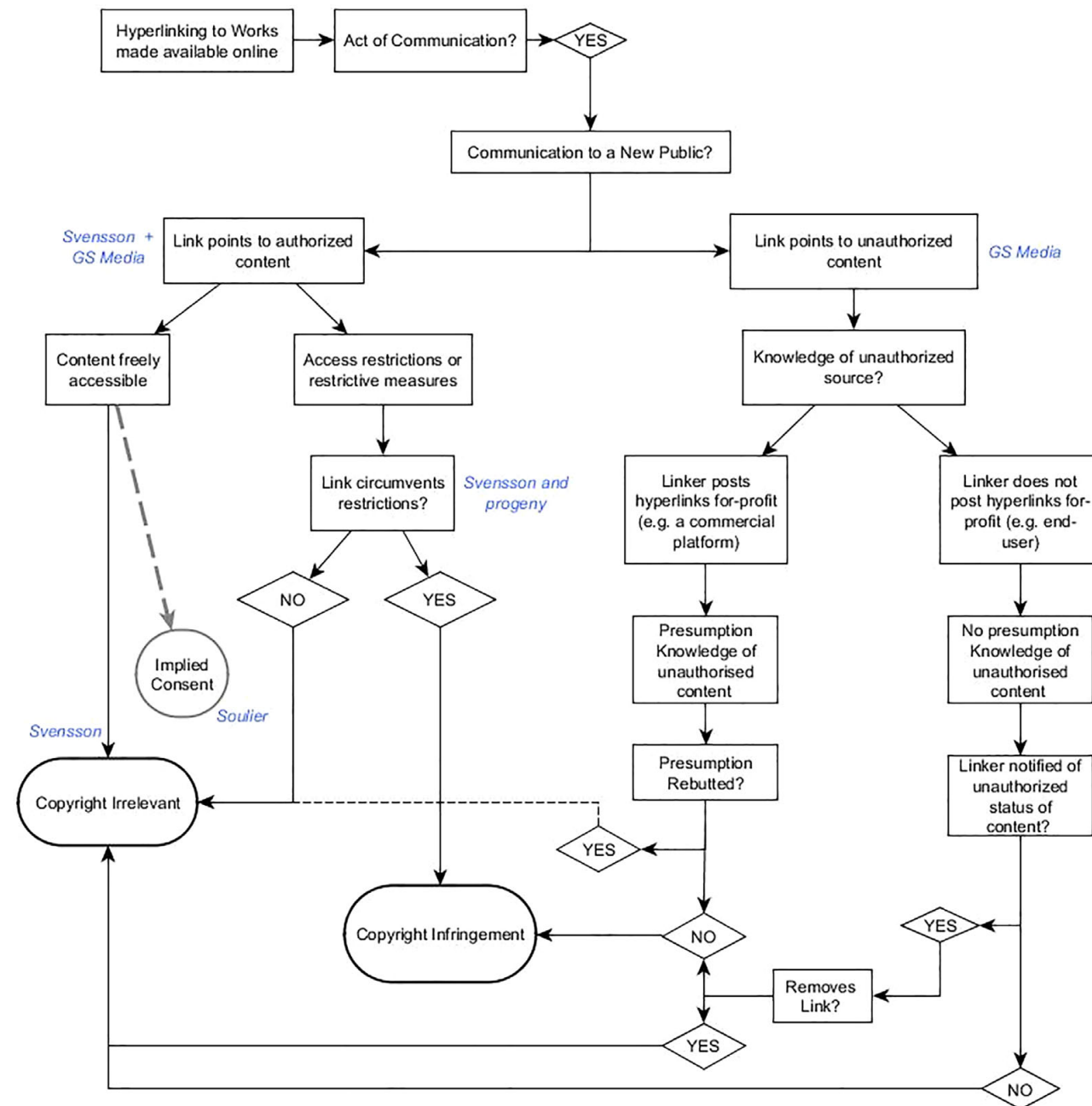
*the importance of both **the [indispensable] role** that such intervention by the platform operator plays in the communication made by the platform user and **the deliberate nature of that intervention** must guide the assessment of whether, given the specific context, that intervention must be classified as an act of communication to the public*

Specific knowledge of infringing content

No appropriate technological protection measures that can be expected from a diligent operator who has general knowledge of infringement

Participation in selection of infringing content

Promotion of sharing of infringing content



Hyperlinking and new public flowchart
 João Pedro Quintais
Untangling the hyperlinking web: In search of the online right of communication to the public
 J World Intellect Prop. 2018;21:385–420
<https://doi.org/10.1111/jwip.12107>

Problem?

No legal certainty

No basis for the new public criterion

Subjectivity

Unforeseen consequences: secondary (intermediary) liability

Exhaustion of rights debacle

Incompatibility with internet freedoms



*Art. 17 CDSM Directive

Special regime for **online content-sharing service providers** (OCSSPs)

*a provider of an information society service of which the main or one of the main purposes is to **store and give the public access to a large amount of copyright-protected works** or other protected subject matter **uploaded by its users**, which it **organises and promotes** for profit-making purposes.*

OCSSP **performs an act of communication to the public** or an act of making available to the public [...] when it gives the public access to copyright-protected works or other protected subject matter uploaded by its users.

Alternative approaches

United States



No explicit communication to the public right, but –

A right to display or perform a work publicly (§106 U.S.C.)

Perfect 10 v Amazon

Server test: provision of a link is infringing only when a linker stores and serves the work to which the link points

Concerns all types of links

Requires possession of a copy

A “process” begins when a link is clicked on

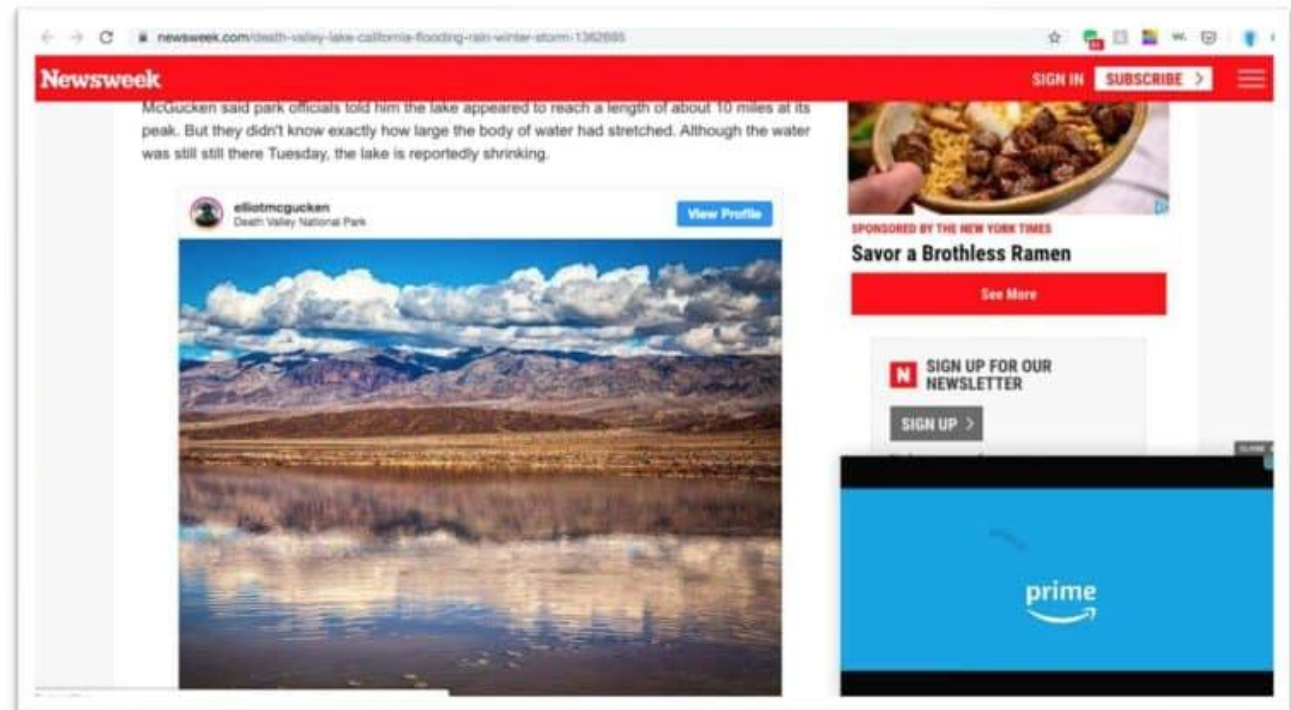
United States

McGucken v Newsweek

S.D.N.Y. 21 March 2022

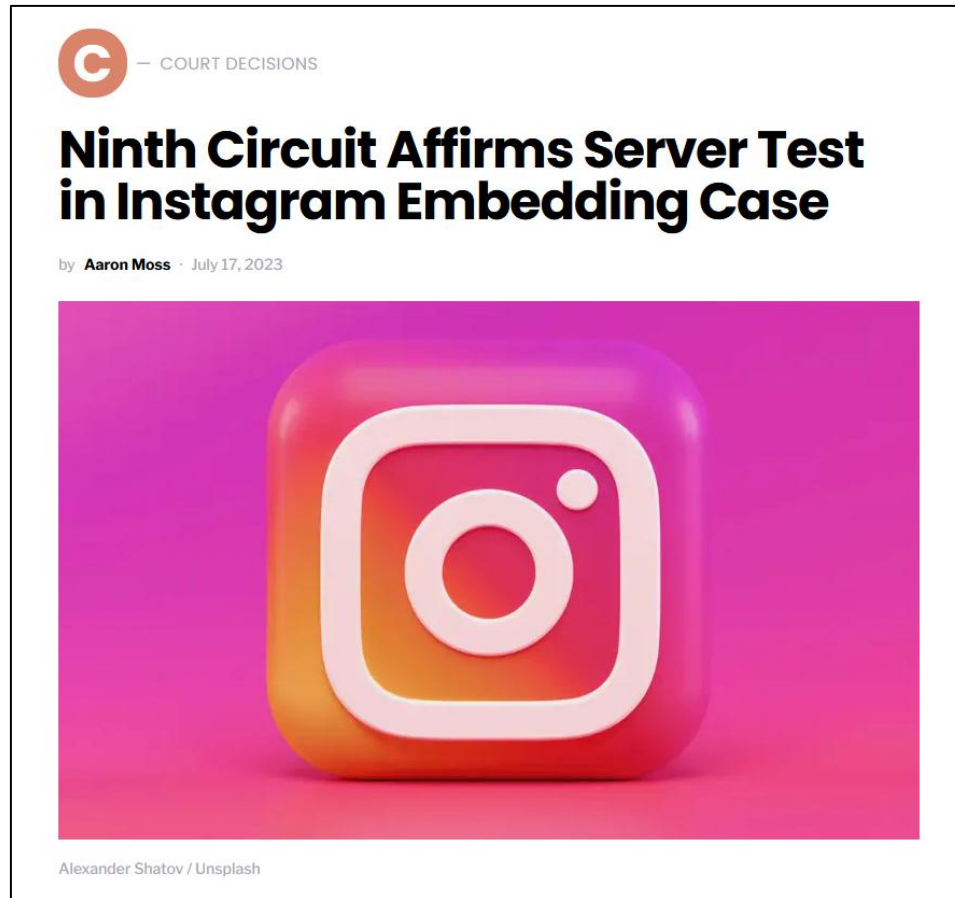
*[...] the Court finds that Defendant **did in fact display** Plaintiff's Photograph when it embedded the Photograph in the Article.*

April 2022: case settled



<https://copyrightlately.com/5-worst-copyright-decisions-of-2022/>

United States



<https://copyrightlately.com/ninth-circuit-affirms-server-test-in-instagram-embedding-case/>

Hunley v Instagram

9th Circuit, 17 July 2023

*[...]under Perfect 10 these instructions **did not constitute "display [of] a copy."** [...]Instagram displayed a copy of the copyrighted works Hunley posted on its platform, and the web browser formatted and displayed the images alongside additional content from Time and BuzzFeed.*

United Kingdom

Tuneln v Warner Music

1. Does provision of links to the radio stations broadcasting all around the world constitute communication to the public?

2. Does it infringe rights of music producers?

→ Yes & yes

CJEU jurisprudence on the right of communication to the public retained post Brexit



**Thank you for your attention
and see you next week**